

1.

CASE #	CASE NAME	HEARING NAME
CVME2606892	RUZICH VS AVILA	MOTION FOR LEAVE TO AMEND COMPLAINT

Tentative Ruling: No tentative ruling; the Court requests appearances, either in person or telephonically.

2.

CASE #	CASE NAME	HEARING NAME
CVMV2407320	BUENO VS PARAMO-GONZALEZ	MOTION FOR SUMMARY JUDGMENT ON CROSS-COMPLAINT

Tentative Ruling:

The Court GRANTS the motion as to the fourth cause of action.

The Court DENIES the motion as to the first, second, third, fifth, and sixth causes of action. In terms of Plaintiff/Cross-Defendant Bueno's Objections to the Opposition, the Court declines to rule on objections 1, 3, 4, 8, 10, 11, 13, 14; and overrules objections 2, 5, 6, 7, 9, 12, 15, 16, 17, 18.

Plaintiff and Cross-Defendant Bueno brings the instant motion for summary judgment/adjudication as to the Cross-Complaint. Bueno argues the breach of oral contract claim is barred by the statute of frauds because the agreement lacks sufficiently definite and material terms. Bueno argues the claim for specific performance fails because no writing exists identifying the interest in the real property to be conveyed or the essential terms of the alleged transaction. Bueno argues there is no evidence to support the fraud causes of action against him.

In Opposition, Paramo-Gonzalez relies on her own declaration to establish an oral contract between the parties. The Opposition argues there are triable issues of material fact as to whether the parties had an implied agreement under *Marvin v. Marvin* (1976) 18 Cal.3d 660. Paramo-Gonzalez argues the ultimate determination of the claims in the Cross Complaint will require an analysis of witness credibility which cannot be made on a motion for summary judgment.

In Reply, Bueno provides a table detailing the discrepancies between Paramo-Gonzalez's Opposition to the instant motion and her deposition testimony. Bueno relies on Paramo-Gonzalez's deposition testimony and reasserts the arguments made in the initial motion. Bueno argues Cross-Complainant has not demonstrated any triable issues of material fact.

Analysis

I. Standard on Motion for Summary Judgment

Summary judgment is granted when a moving party establishes the right to entry of judgment as a matter of law. (CCP § 437c(c).) The moving party bears the initial burden of production to make a prima facie showing that there are no triable issues of material fact. (CCP § 437c(p)(2); *Aguilar v. Atlantic Richfield Co.* (2001) 25 Cal.4th 826, 850.) Defendant, as the moving party, has the burden to show either that one or more elements of the cause of action cannot be established or that there is a complete defense to that cause of action. (CCP § 437c(p)(2).) Defendant can meet their burden by showing either: (1) affirmative evidence that shows an element of the claim cannot be established; or (2) showing an absence of evidence on a critical element of Plaintiff's claim.

Once the moving party has made such a showing, the burden shifts to the responding party to show that a triable issue of one or more material facts exists as to that cause of action or as to a defense to the cause of action. (*Aguilar v. Atlantic Richfield Co.* (2001) 25 Cal.4th 826, 849.) If the responding party does not make such a showing, summary judgment in favor of the moving party is appropriate.

"The purpose of the summary judgment procedure is not to try the issues but merely to discover ... whether the parties *possess evidence* which demands the analysis of trial." (*Colvin v. City of Gardena* (1992) 11 Cal.App.4th 1270, 1275 (italics added).) Summary judgment can be granted only where the essential facts are either conceded or beyond dispute. If there is one, single material fact in dispute, the motion must be denied.

The court also has the power to summarily adjudicate that one or more causes of action have no merit, that there is no merit to one or more affirmative defenses, or that a defendant owed or did not owe a duty to plaintiff. A motion for summary adjudication shall only be granted if it completely disposes of a cause of action, an affirmative defense, a claim for damages, or an issue of duty. (CCP § 437c(f)(1).)

I. Objections

In ruling on a motion for summary judgment/adjudication, the court need only rule on those evidentiary objections that it deems material to disposition of the motion. (CCP § 437c(q).)

In Reply, Bueno makes eighteen (18) objections to Paramo-Gonzalez's declaration (objections 1-16); Exhibits A, C, and E (objection 17); and response to separate statement (objection 18).

The objections challenge Paramo-Gonzalez's declaration testimony and evidence offered in support. Bueno argues Paramo-Gonzalez's statements do not support that an

agreement existed between the parties and that the evidence offered in support contradicts her deposition testimony. Many of the objections are immaterial to the disposition of the motion and, as a result, the Court declines to rule on them. As for the remaining objections, they are appropriately overruled and the court can consider the challenged evidence.

Decline to rule: objections 1, 3, 4, 8, 10, 11, 13, 14,

Overrule: objections 2, 5, 6, 7, 9, 12, 15, 16, 17, 18.

II. *Marvin v. Marvin* (1976) 18 Cal.3d 660 (*Marvin*)

Property and support rights under the Family Code are predicated on the existence of a valid marriage or registered domestic partnership. Simply living together as alleged husband and wife does not give rise to a “marriage” or other legal union. (*Maglica v. Maglica* (1998) 66 Cal.App.4th 442, 447 (common law marriage does not exist in California).) However, nonmarried cohabitants have the same right to enforce contracts and assert equitable rights and interests as do any other unmarried persons. (*Marvin, supra*, 18 Cal.3d at 684.) Unmarried cohabitants can avail themselves of the following remedies to enforce property, support, and other financial claims arising out of their relationship: action for breach of express contract; action on an implied contract based on the parties’ conduct; action to enforce a partnership or joint venture agreement; action to impose a constructive trust; action for declaratory relief to establish rights under a cohabitation agreement; action for specific performance of property agreement; and action in quantum meruit to recover the reasonable value of services rendered less than the reasonable value of support received. (*Marvin, supra*, 18 Cal.3d at 675, 684; *Byrne v. Laura* (1997) 52 Cal.App.4th 1054, 1073 (Marvin claimant could properly pursue specific performance of property agreement).)

Since *Marvin* cases can be rooted in contract, either express or implied, the party asserting the contract must prove the existence of the contract by a preponderance of the evidence. (Evidence Code §115; *Tannehill v. Finch* (1986) 188 Cal.App.3d 224, 228.) However, a *Marvin* claimant asserting an interest in property contrary to record title must rebut the statutory presumption that the owner of legal title is the owner of full beneficial title by clear and convincing proof. (Evidence Code §662.)

III. Specific Performance for Breach of Express Contract (1st COA)

“A cause of action for breach of contract requires pleading of a contract, plaintiff’s performance or excuse for failure to perform, defendant’s breach and damage to plaintiff resulting therefrom.” (*Spinks v. Equity Residential Briarwood Apartments* (2009) 171 Cal. App. 4th 1004, 1031.) A contract will be enforced if it is sufficiently definite for the court to ascertain the parties’ obligations and to determine whether there has been a breach. (*Bustamante v. Intuit Inc.* (2006) 141 Cal. App. 4th 199, 209.) To plead a cause of action based on a written contract, a plaintiff may attach a copy of the written contract

and incorporate it by reference or plead the terms verbatim or the legal effect of the contract. (*Construction Protective Services, Inc. v. TIG Specialty Ins. Co.* (2002) 29 Cal.4th 189, 198-199.)

The Cross Complaint alleges multiple agreements between the parties. The Cross Complaint relies on Paramo-Gonzalez's allegation in August 2019, the parties entered into an oral agreement "wherein Defendant agreed that during the time that the parties maintained their relationship, the Defendant would combine his skills, efforts, labor and earnings and would share equally with Plaintiff any and all property acquired and accumulated as result of his skills, efforts, labor and earnings, said agreement to be performed wherever the parties were situated." (CC ¶8.) Additionally, "it was further agreed that Defendant would then and thereafter provide for all Plaintiff's financial support and needs for the rest of her life in the same style and manner that was established during the parties' relationship consistent with Defendant's annual earnings and accumulations. The defendant would provide finances for the benefit of Plaintiff." (¶12.) Paramo-Gonzalez alleges she performed each of her duties under the agreement. (¶14.)

In challenging this cause of action, Bueno argues there can be no breach of contract because the alleged contract between the parties is so uncertain and indefinite that the parties' intention cannot be ascertained. Bueno relies on Paramo-Gonzalez's deposition testimony and his own declaration. Paramo-Gonzalez stated there is no writing that corroborates paragraph 12 of the Cross Complaint. (Depo Transcript p.71:9-20.) Paramo-Gonzalez stated Bueno agreed to financially support her, but there was no agreed-upon amount or timeline for when payments were to begin or end. (Id. at p.42:12-43:19.) Bueno states he never entered into any written agreement obligating himself to provide Paramo-Gonzalez with financial support for the remainder of her life. (Bueno Decl. ¶19.) Bueno did not tell Paramo-Gonzalez either in writing or orally that he would support her in the event their relationship ended. (¶¶ 27, 29.)

First, Bueno's evidence demonstrates there was no contract or agreement of any kind between the parties. Bueno's testimony states he did not agree, either in writing or orally, that he would support Paramo-Gonzalez during their relationship or after their relationship ended. (Bueno Decl. ¶¶9, 27, 29.) Without a contract, there can be no claim for breach of contract. Bueno has met his initial burden.

Second, the evidence offered in support of the motion demonstrates that even if there was an agreement between the parties, the terms were indefinite and uncertain making the terms of the agreement not clearly ascertainable. An offer for a contract must be specific enough that its acceptance creates a complete contract. (*Ladas v. California State Automobile Association* (1993) 19 Cal.App.4th 761, 770-771.) An obligation cannot be specifically enforced if "the terms ... are not sufficiently certain to make the precise act which is to be done clearly ascertainable." (Civ. Code § 3390(e).) Paramo-Gonzalez's testimony indicates there was no agreed-upon amount of financial support or timeline for the support to continue. The idea that Bueno was to financially support Paramo-Gonzalez for her entire life is unclear and uncertain. A specific

monetary amount is not necessary to enforce a contract. A California court has held the promise of an amount sufficient to retire on was definite enough to support an action for breach of contract. (*Moncada v. West Coast Quartz Corp.* (2013) 221 Cal.App.4th 768, 779.) However, here, Paramo-Gonzalez's deposition testimony demonstrates there were no parameters to the agreement whatsoever. The evidence offered in support of the motion demonstrates a lack of certainty in the contract terms. Bueno has, again, met his initial burden.

Additionally, the Cross Complaint alleges the parties purchased a home together in August 2019. (CC ¶19.) Paramo-Gonzalez alleges Bueno told her, "she was on the paperwork for the house so if anything happened to him the house would be hers alone." (¶21.) The Cross Complaint alleges Bueno told Paramo-Gonzalez their residence was her home but was ultimately deprived of her share of the residence by Bueno's fraudulent representations. (CC ¶¶25, 33.) Paramo-Gonzalez alleges she is "entitled to a significant ownership interest in the family home." (¶38.) To that end, she seeks partition of the property. (CC ¶¶40-47.) It is not clear from the Cross Complaint whether Paramo-Gonzalez is alleging Bueno breached a contract with her for her to share an interest in the residence. However, to the extent the Cross Complaint is making such an allegation, that claim is barred by the statute of frauds. Under Civil Code §1624, contracts for the sale of real property or an interest therein must be in writing and signed by the party against whom enforcement is sought. In support of the motion, Bueno has provided testimony that he never executed a grant deed or any written agreement transferring or promising to transfer an interest in the property to Paramo-Gonzalez. (Bueno Decl. ¶¶9-12.) In her deposition, Paramo-Gonzalez admitted there is no written agreement indicating the house legally belonged to both parties. (Deposition Transcript p.46:2-18.) Bueno has met his initial burden.

In Opposition to the motion, Paramo-Gonzalez offers her own declaration. Paramo-Gonzalez states the parties entered into an oral agreement that Bueno would care of Paramo-Gonzalez financially and "if we should ever break up the real property would be mine." (Paramo-Gonzalez Decl. ¶10.) Moving party states the parties "entered into an oral agreement whereby we agreed to purchase a family home together in Moreno Valley, CA." (¶11.) Additionally, the parties "agreed that [they] would share ownership of the family home equally and upon dissolution of [their] relationship [Paramo-Gonzalez] would be paid 50% of the value of the family home." (¶11.) Paramo-Gonzalez provides text messages that she contends confirm their agreement in writing. (Paramo-Gonzalez Decl. Ex. A.) The text messages show the parties discussed touring homes for sale and Bueno sent Paramo-Gonzalez the counteroffer he received from the Deerwood property. The text messages in Exhibit A do not indicate the parties had any oral agreement regarding ownership of the property. Exhibit C includes a text message exchange between the parties where Bueno said, "We own a home now!!!!" to Paramo-Gonzalez. Paramo-Gonzalez goes on to state the terms of the oral agreement: "The Deerwood property was supposed to be our family home; the Lexus was supposed to be my vehicle." (Paramo-Gonzalez Decl. ¶26.) Paramo-Gonzalez states she performed the conditions of the agreement on her end – cooking, cleaning, paying utility bills, and performing wifely duties. (¶26.) To support that statement, Paramo-Gonzalez provides

copies of utility bills and payments she made towards household expenses. (¶27, Exhibit D.)

The evidence presented in support of the Opposition is enough to create a triable issue of material fact. Paramo-Gonzalez's testimony directly contradicts Bueno's testimony that no agreement existed between the parties. (¶¶11, 26.) Paramo-Gonzalez's testimony provides some clarity as to the terms of the alleged agreement: "Bueno would use his VA loan benefits to purchase the home, pay the mortgage and I would pay the utilities, food, cook and clean [for] Mr. Bueno and perform other wifely duties." In exchange for these domestic services, Bueno agreed the parties would share ownership of the residence, and he would take care of Paramo-Gonzalez financially. (Paramo-Gonzalez Decl. ¶11.) In a *Marvin* agreement, the rendition of ordinary homemaking services may itself be lawful and adequate consideration for a property sharing or support agreement between nonmarital cohabitants. (*Marvin v. Marvin* (1976) 18 Cal.3d 660, 670; *Chiba v. Greenwald* (2007) 156 Cal.App.5th 71, 80.) The evidence presented is enough to establish a triable issue of material fact as to whether the claimed agreement between the parties was a valid and enforceable *Marvin* agreement.

As noted above, to overcome the presumption that Bueno is the full title and beneficial owner of the property, Paramo-Gonzalez must rebut that presumption by clear and convincing proof. (Evidence Code §662.) Whether a claimant's proof of a *Marvin* agreement contrary to the record title meets the clear and convincing evidence standard of proof cannot be decided by summary judgment. (*Byrne v. Laura* (1997) 52 Cal.App.4th 1054, 1073.) Again, Paramo-Gonzalez has established a triable issue of material fact and the Court must deny the motion.

IV. Constructive Trust for Breach of Express and Implied Contracts (2nd & 3rd COA)

A constructive trust "is an equitable remedy, not a substantive claim for relief." (*PCO, Inc. v. Christensen, Miller, Fink, Jacobs, Glaser, Weil & Shapiro, LLP* (2007) 150 Cal.App.4th 384, 398.) It is to prevent unjust enrichment and to prevent a person from taking advantage of his or her own wrongdoing. (*Ibid.*) "Before a constructive trust can be imposed, the plaintiff must prove that the defendant's acquisition of the property was wrongful." (*Ibid.*) To obtain a constructive trust, the plaintiff must demonstrate: (1) the existence of res (i.e. property or some interest in the property), (2) the plaintiff's right to that res, and (3) the defendant's acquisition of the res by some wrongful conduct. (*Optional Capital, Inc. v. DAS Corp.* (2014) 222 Cal.App.4th 1388, 1402.) It can include fraud, accident, mistake, undue influence or any other wrongful act. (*Ibid.*)

A constructive trust is an equitable remedy that compels a wrongful holder of property to transfer the property to the rightful owner. (*American Master Lease LLC v. Idanta Partners, Ltd.* (2014) 225 Cal.App.4th 1451, 1485.) Courts have held that constructive trust is not an independent cause of action. (See *Glue-Fold, Inc. v. Slautterback Corp.* (2000) 82 Cal.App.4th 1018, 1023, fn. 3.) However, courts may permit a cause of action for constructive trust which is not based on the establishment

of a trust, but consists of fraud, breach of fiduciary duty or other act that entitles the plaintiff to relief. (*Michaelian v. State Comp. Ins. Fund* (1996) 50 Cal.App.4th 1093, 1114.)

Bueno argues Paramo-Gonzalez cannot establish her right to a constructive trust because she cannot establish any ownership right in any of the disputed property, including the residence. Bueno has presented evidence he is the only legal title owner of the home and he never transferred or agreed to transfer title to Paramo-Gonzalez. (Bueno Decl. ¶¶4-12.) Bueno has also presented evidence he is the sole owner of the disputed Lexus. (Bueno Decl. ¶22.) Bueno asserts Paramo-Gonzalez did not contribute to the purchase of the Lexus and he did not gift the car to her at any time. (Bueno Decl. ¶¶25-26.) This evidence satisfies Bueno's initial burden on the motion.

The same analysis from above is applicable here. Although Bueno has met his initial burden, Paramo-Gonzalez has presented evidence that demonstrates a triable issue of material fact as to her ownership in the disputed property. Once again, the motion must be denied.

V. Fraudulent Misrepresentation and Deceit (4th COA)

The elements of fraud are: (1) misrepresentation or concealment, (2) knowledge of falsity, (3) intent to defraud, (4) justifiable reliance, and (5) resulting damage. (*Lovejoy v. AT&T Corp.* (2004) 119 Cal. App. 4th 151, 157-158.)

The Cross Complaint alleges Bueno made the following misrepresentations to Paramo-Gonzalez: (1) Plaintiff could not be on title to the residence because it was a VA loan; (2) Bueno did not need to buy Paramo-Gonzalez an engagement ring because he bought her a house; (3) Bueno had Plaintiff sell her paid-off vehicle and told her the Lexus was her present but she couldn't be on title to the car because she had student loans; and (4) Bueno told Plaintiff to stop working and offered his GI bill benefits so she could return to school and get a higher degree. (CC ¶¶25-28.)

Bueno offers evidence that he did not make the alleged statements to Paramo-Gonzalez. Bueno did not tell Paramo-Gonzalez she couldn't be on title to the residence because he wanted to buy the property with a Veteran Affairs loan. (Bueno Decl. ¶20.) As discussed above, Bueno has presented evidence he is the only legal title owner of the home and he never transferred or agreed to transfer title to Paramo-Gonzalez. (Bueno Decl. ¶¶4-12.) Bueno has also presented evidence he is the sole owner of the disputed Lexus. (Bueno Decl. ¶22.) Bueno asserts Paramo-Gonzalez did not contribute to the purchase of the Lexus and he did not gift the car to her at any time. (Bueno Decl. ¶¶25-26.) Bueno states he did not tell Paramo-Gonzalez to sell her vehicle to purchase the Lexus because Paramo-Gonzalez did not own any vehicle to sell. (¶25.) Bueno states he told Paramo-Gonzalez to quit her job so she could pursue her PhD, but she never quit her job. Bueno states Paramo-Gonzalez worked throughout their relationship which shows that even if Bueno made the alleged statement to her, Paramo-Gonzalez did not rely in any way on the promise that she could use Bueno's GI bill benefits to

obtain her degree. (Bueno Decl. ¶30.) The evidence presented has satisfied Bueno's initial burden.

The Opposition does not directly address the fraud cause of action. In response to Bueno's separate statement, Paramo-Gonzalez does not dispute any of the evidence presented under Issue No. 5: Gonzalez's fraud or deceit claim fails because she could not prove justifiable and detrimental reliance on alleged misrepresentation of facts by Bueno. Paramo-Gonzalez does not provide any evidence that demonstrates she detrimentally relied on any of Bueno's alleged false statements. The only statement Paramo-Gonzalez makes regarding her changed circumstance does not show detrimental reliance: "I changed my life completely when I met Mr. Bueno. I went from being completely a self-reliant woman into being a wife wholly dependent on Mr. Bueno for our family home. I fully trusted Mr. Bueno with all of my heart and soul never believing he had lied to me." (Paramo-Gonzalez Decl. ¶28.) Paramo-Gonzalez acknowledges she is currently employed by the Riverside Unified School District and has been for the past nineteen (19) years. (Paramo-Gonzalez Decl. ¶3.) There is no evidence that Paramo-Gonzalez relied to her detriment in any way on Bueno's alleged statements.

Since Paramo-Gonzalez has not provided any evidence to establish a triable issue of material fact, the motion must be granted.

VI. Declaratory Relief (5th COA)

Any person interested under a contract may, in cases of actual controversy relating to the legal rights and duties of the respective parties, bring an action for declaration of his rights and duties including any question of construction or validity arising under the contract (Cal. Code Civ. Proc. §1060.) "A complaint for declaratory relief is legally sufficient if it sets forth facts showing the existence of an actual controversy relating to the legal rights and duties of the parties under a written instrument or with respect to property and requests that the rights and duties of the parties be adjudged by the court." (*Wellenkamp v. Bank of America* (1978) 21 Cal.3d 943, 947.) "Declaratory relief operates prospectively, serving to set controversies at rest...where there is an accrued cause of action for an actual breach of contract or other wrongful act, declaratory relief may be denied." (*Osseous Technologies of America v. Discovery Ortho Partners* (2010) 191 Cal. App. 4th 357, 366 (citing 5 Witkin, Cal. Procedure (5th ed. 2008) Pleading, §869, p.284).)

Since this cause of action is derivative of the other claims in the Cross Complaint, it survives so long as the other claims do. Given the triable issues of material fact as to the first, second, and third causes of action, the declaratory relief claim also survives the instant motion. Denied.

VII. Partition (6th COA)

The purpose of a partition action is “to sever the unity of possession.” (*LEG Investments v. Boxler* (2010) 183 Cal.App.4th 484, 493.) It is an equitable remedy that is governed by statute. (*Cummings v. Dessel* (2017) 13 Cal.App.5th 589, 596-597.) To properly allege a claim for partition, the plaintiff must plead: (1) the property description; (2) plaintiff’s property interests; (3) other persons’ claimed interests in the property that plaintiff reasonably believes the action will materially affect; (4) the estate for partitioning and a prayer for partitioning those interests; and (5) facts justifying any sought sale of the property. (Civ. Proc. Code, § 872.230.) Under the former statute, there was a requirement that the plaintiff were owners as joint tenants or tenants in common. (5 Witkin, *supra*, § 677.) However, under section 872.210(a), all that is required is that the plaintiff be: (1) a co-owner of personal property, or (2) an owner of an estate of inheritance, an estate for life, or an estate for years in real property where such property or estate therein is owned by several persons concurrently or in successive estates.

Bueno argues this cause of action fails because Paramo-Gonzalez cannot demonstrate she is a co-owner of the property or that she has any right to the property. Again, Bueno has presented evidence he is the only legal title owner of the home and he never transferred or agreed to transfer title to Paramo-Gonzalez. (Bueno Decl. ¶¶4-12.) Bueno has met his initial burden.

As noted above, to overcome the presumption that Bueno is the full title and beneficial owner of the property, Paramo-Gonzalez must rebut that presumption by clear and convincing proof. (Evidence Code §662.) Whether a claimant’s proof of a Marvin agreement contrary to the record title meets the clear and convincing evidence standard of proof cannot be decided by summary judgment. (*Byrne v. Laura* (1997) 52 Cal.App.4th 1054, 1073.) For this reason, Paramo-Gonzalez has established a triable issue of material fact; denied.

3.

CASE #	CASE NAME	HEARING NAME
CVRI2306780	SOLIMAN VS GAD	MOTION TO COMPEL ATTENDANCE AT DEPOSITION AND TO PRODUCE DOCUMENTS

Tentative Ruling:

The Court GRANTS the unopposed Motion to Compel and awards relief to the moving party as requested in items 1 through 4 at pp. 16-17 of the Motion. The Court imposes monetary sanctions of \$1050 (3.5 x \$300) against plaintiffs and their counsel of record, jointly and severally, to be paid within thirty days of this Order.